

Notice from the National Commission for Data Protection regarding
Bill No. 8133 on the future protection mandate amending: 1° the New Code of Civil Procedure, and 2° the amended law of March 7, 1980 on judicial organization
Deliberation No. 88/AV41/2023 of October 20, 2023

In accordance with Article 57.1.e) of Regulation (EU) 2016/679 of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter referred to as the "GDPR"), to which Article 7 of the law of August 1, 2018 on the organization of the National Commission for Data Protection and the general regime on data protection refers, the National Commission for Data Protection (hereinafter referred to as the "National Commission" or the "CNPD") "advises, in accordance with the law of the Member State, the national parliament, the government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to processing."

Article 36.4 of the GDPR states that "[m]ember states consult the supervisory authority in the context of the preparation of a legislative proposal to be adopted by a national parliament, or a regulatory measure based on such a legislative measure, which relates to processing."

By letter dated January 5, 2023, the Minister of Justice invited the National Commission to express its opinion on Bill No. 8133 regarding the future protection mandate amending: 1° the New Code of Civil Procedure, and 2° the amended law of March 7, 1980 on judicial organization (hereinafter referred to as the "bill").

According to the explanatory memorandum, the bill aims to introduce a conventional protection measure for adults, namely the future protection mandate. The regime of this measure is based on the principle of autonomy of will and respect for individual freedoms, allowing a person to organize their personal or patrimonial protection in a regulated manner, notably through the registration of the future protection mandate in the civil registry maintained by the Public Prosecutor's Office.

According to the explanatory memorandum, the bill is part of the implementation of the second National Action Plan for the implementation of the Convention on the Rights of Persons with Disabilities 2019-2024, developed within the framework of the UN Convention on the Rights of Persons with Disabilities and its Optional Protocol, signed on March 30, 2007 and ratified on July 28, 2011 (hereinafter referred to as the "CRPD"). It is noted in the explanatory memorandum that neighboring countries have...

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implemented the principles set forth by the CRDPH, within the framework of the introduction of various measures, including the future protection mandate. The National Commission will hereinafter provide its observations solely regarding the issues related to the protection of personal data raised by this bill.

1. Preliminary Remarks

The National Commission welcomes the fact that the bill aims to provide a legal basis for the processing of data carried out under the bill under review. However, the text under review lacks precision regarding essential elements, particularly concerning the types of personal data intended to be included in the certificates of registration of the future protection mandate, as well as in the certificates of the effectiveness of this mandate, or the recipients of these certificates.

Indeed, Article 8 of the European Convention on Human Rights guarantees the right to respect for private and family life. Furthermore, Articles 7 and 8 of the Charter of Fundamental Rights of the European Union (hereinafter the "Charter") grant every person the right to respect for their private and family life as well as the right to the protection of personal data concerning them. These fundamental

rights are not absolute prerogatives since the possibility of interference or limitation is provided for both by Article 8.2 of the European Convention on Human Rights and by Article 52.1 of the Charter. Such interference or limitation may be justified provided that it:

- is provided for by a law accessible to the persons concerned and predictable in its repercussions, that is to say, formulated with sufficient precision;
- is necessary in a democratic society, subject to the principle of proportionality;
- respects the essential content of the right to data protection;
- effectively meets objectives of general interest or the need to protect the rights and freedoms of others.

Moreover, Article 6.3 of the GDPR provides a particular constraint related to the lawfulness of data processing necessary for compliance with a legal obligation or for the performance of a task carried out in the public interest or in the exercise of public authority vested in the data controller. It follows from this provision that:

1 See points 21 et seq. of this opinion.

2 For a more detailed analysis of these conditions, see deliberation No. 2/2021 of February 4, 2021, of the National Commission for Data Protection, doc. pari. No. 7425/09, point 1.1.b).

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The basis for the processing referred to in paragraph 1, points e) and e), is defined by:

a) Union law; or

b) The law of the Member State to which the data controller is subject.

The purposes of the processing are defined in this legal basis or, with regard to the processing referred to in paragraph 1, point e), are necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.

This legal basis may contain specific provisions to adapt the application of the rules of this regulation, including: the general conditions governing the lawfulness of the processing by the data controller; the types of data that are subject to processing; the data subjects; the entities to which personal data may be communicated and the purposes for which they may be communicated; the limitation of purposes; the retention periods; and the processing operations and procedures, including measures to ensure lawful and fair processing, such as those provided for in other specific processing situations as set out in Chapter IX. Union law or the law of Member States serves a public interest objective and is proportionate to the legitimate aim pursued.

Recital (41) of the GDPR further specifies that this legislative measure should be clear and precise and its application should be foreseeable for individuals, in accordance with the case law of the Court of Justice of the European Union and the European Court of Human Rights.

Moreover, Recital (45) of the GDPR states that "when processing is carried out in accordance with a legal obligation to which the data controller is subject or when it is necessary for the performance of a task carried out in the public interest or in the exercise of official authority, the processing should have a basis in Union law or in the law of a Member State. [...] It should also fall within Union law or the law of a Member State to determine the purpose of the processing. Furthermore, this law could specify the general conditions of this regulation governing the lawfulness of the processing of personal data, establish the specifications for determining the data controller, the type of personal data subject to processing, the data subjects, the entities to which personal data may be communicated, the limitations of purpose, the duration of retention, and other measures to ensure lawful and fair processing. It should also fall within Union law or the law of a Member State to determine whether the data controller carrying out a task in the public interest or in the exercise of official authority should be a public authority or another natural or legal person under public law or, when the public interest

requires, including for health purposes, such as public health, social protection, and the management of healthcare services, a private law entity, such as a professional association."

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In domestic law, Article 31 of the Constitution states that "everyone has the right to informational self-determination and to the protection of personal data concerning them. Such data may only be processed for purposes and under conditions determined by law." According to Article 37 of the Constitution, "any limitation on the exercise of public freedoms must be provided for by law and respect their essential content. In accordance with the principle of proportionality, limitations may only be imposed if they are necessary in a democratic society and effectively meet objectives of general interest or the need to protect the rights and freedoms of others."

II.

The processing of so-called "sensitive" data by the civil registry

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The mandate for future protection and the data processing carried out in this context relate to the private life of the individuals concerned in that they provide indications about the personal situation and emotional ties of the mandator, and possibly the mandatary, as well as about the patrimonial situation of the mandator.

11. Furthermore, the draft law provides for processing concerning particular categories of data, referred to as "sensitive data," within the meaning of Article 9 of the GDPR, namely data concerning health, but also, where applicable, data concerning sexual orientation, as well as religious or philosophical beliefs. The processing of this type of personal data is generally prohibited, except in the cases enumerated in Article 9.2 of the GDPR. The Court of Justice of the European Union has adopted a broad interpretation of the notion of "particular categories of personal data" by ruling that the processing of personal data that may indirectly reveal sensitive information concerning a natural person is subject to the enhanced protection regime provided for by Article 9 of the GDPR. In this case, the processing of sensitive data could potentially be based on Article 9.2.g) of the GDPR. Under this provision, the processing of sensitive data is permissible if it is necessary for reasons of substantial public interest, based on Union law or the law of a Member State, which must be proportionate to the objective pursued, respect the essence of the right to data protection, and provide appropriate and specific measures for safeguarding the fundamental rights and interests of the data subject.

12. The text under review stipulates that data processing is carried out through the civil registry, which is governed by Articles 1126 to 1130 of the New Code of Civil Procedure (hereinafter "NCPC"). However, these provisions, introduced by Grand-Ducal Regulation of December 31, 1982, and unchanged since then, do not provide appropriate and specific measures for safeguarding the fundamental rights and interests of the data subject as required by Article 9.2.g) of the GDPR. In general, the Commission

" CJEU, judgment of August 1, 2022, Vyriausioji tarnybinės etikos komisija, C-184/20, EU:C:2022:601, paragraphs 120 and following.

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****National Inquiry into the Necessity of a Broader Reform of the Civil Registry to Comply with GDPR Requirements****

The national authority questions the necessity of providing for a broader reform of the civil registry to make it compliant with the requirements of the GDPR. It is also pertinent to consider whether the Grand-Ducal Regulation of December 31, 1982, which introduced Articles 1126 to 1130 into the NCPC, is in accordance with the revised Constitution in effect since July 1, 2023, and more particularly with Article 31, read in conjunction with Article 45.2, which states that the protection of personal data is a matter reserved for law.

****III. Application of the GDPR to the Relationship Between the Principal and the Agent, or Even the Controller****

13. The National Commission observes incidentally that the rules of the GDPR apply not only to data processing carried out through the civil registry but are also likely to govern the relationship between the principal and the agent, or even the controller. In this regard, it is important that the authors of the draft law provide clarifications regarding the obligation to retain certain documents by the agent and the controller. As highlighted in the joint opinion of the judicial authorities, the text under review is unclear regarding the documents that must be retained, the person responsible for retention, as well as the duration of retention, which also creates uncertainties in terms of data protection.

****IV. Exercise by the Agent of the Rights Conferred by the GDPR****

14. It must be noted that the scope of the mandate for future protection is broader than that of judicial protection measures. Indeed, the safeguard of justice, curatorship, and guardianship apply only to the property of the adult person to be protected, whereas the new measure created by the draft law is likely to apply to the person of the principal. The CNPD deduces that the mandate for future protection could provide for a stipulation allowing the agent to exercise the rights that the principal has under the GDPR or other applicable texts regarding data protection.

15. In this context, the question arises as to what evidence a data controller may then request to ensure that the agent validly represents the data subject, and to avoid the risk of carrying out unlawful data processing. Should it be understood that a certificate of the effectiveness of the mandate, as mentioned in Article 9, paragraph 5, of the draft law, constitutes one, if not the only means of proof of the legitimacy of the agent to make requests (for example: a request for access to personal data under Article 15 of the GDPR) on behalf of the principal? The fact of being a data controller having...

****Joint Opinion of the Court of Appeal, the Public Prosecutor's Office, the Public Prosecutor's Office of the District Court of Diekirch, the Public Prosecutor's Office of the District Court of Luxembourg, the District Court of Diekirch, and the District Court of Luxembourg dated May 12, 2023, doc. pari. no. 8133/01, p. 19 et seq.****

****Articles 1 and 2 of the Draft Law. See also: Joint Opinion of the Court of Appeal, the Public Prosecutor's Office, the Public Prosecutor's Office of the District Court of Diekirch, the Public Prosecutor's Office of the District Court of Luxembourg, the District Court of Diekirch, and the District Court of Luxembourg dated May 12, 2023, doc. pari. no. 8133/01, p. 9.****

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need to verify whether the said condition of the agent would suffice to fulfill the condition of "a legitimate interest" mentioned in the same article of the draft law?

V.

Registration of the future protection mandate in the civil registry

16. Article 8, paragraph 1, of the draft law provides that "the future protection mandate must be registered in the civil registry maintained by the Public Prosecutor's Office." In this context, the original of the future protection mandate and, where applicable, the medical certificate must be transmitted to the Public Prosecutor's Office for the purpose of preservation in the civil registry and registration in the

file according to the provisions of Articles 1126 and 1127 of the NCPC. However, Article 1126 of the NCPC remains unchanged by the draft law and therefore does not expressly mention future protection mandates. Article 1127 of the NCPC, for its part, states that the publicity of documents preserved in the civil registry is ensured by a registration in a file in the name of the protected person.

17. According to the understanding of the CNPD, the original of the future protection mandate as well as, in the case of a mandate established under private signature, the medical certificate attesting to the capacity of the mandator to conclude such a mandate are preserved in the civil registry. However, what about the detailed medical certificate provided for in Article 10.2° of the draft law, the issuance of which is a condition for the effectiveness of the future protection mandate? Is it also preserved in the civil registry or, on the contrary, returned to the agent after the official has registered the effectiveness of the future protection mandate? Furthermore, what is the objective pursued by the communication of this certificate to the official: is it to allow the official to verify whether the conditions required for the effectiveness of the future protection mandate are met?

18. In general, it should be noted that the notion of "purpose," that is, the objective pursued by the processing, occupies a central place within the GDPR. According to Article 5.1.b) of the GDPR, personal data must be collected for specified, explicit, and legitimate purposes, and not processed further in a manner incompatible with those purposes. Moreover, other principles provided by the GDPR, such as the principles of data minimization or storage limitation, are assessed in light of the purposes for which the data are processed. Therefore, it is important that the purposes of the various processes established by the draft law are clearly defined, which, in the eyes of the CNPD, is not the case here.

19. The CNPD also reminds that the detailed medical certificate contains very detailed information about the health status of the mandator, as it precisely describes the impairment of the mandator's faculties, provides all information regarding the foreseeable evolution of this impairment, and specifies the consequences of this impairment on the necessity of representation. However, the civil registry is regulated only very succinctly in Title XVI of Book I.

7 See also point 22 of this opinion.

8 Article 5.1.c) of the GDPR.

9 Article 5.1.e) of the GDPR.

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of the NCPC dedicated to the civil registry. It therefore seems necessary to more strictly and explicitly frame the operation of the civil registry, at the risk of not complying with the conditions of Article 9.2.g) of the GDPR, which allows for the establishment of processing sensitive data for reasons of public interest. Given that the commentary on Article 8 indicates that the authors of the draft law were heavily inspired by the Belgian model, the National Commission notes that the Belgian legislator has provided for the creation of a central register specifically intended to group contracts and documents related to extra-judicial protection mandates.

The National Commission believes that the legal framework resulting from the draft law is lacking and particularly questions the duration of retention of a mandate registered in the civil registry. The draft law should specify the duration of retention, taking into account the various scenarios that may arise (revocation of the future protection mandate, restoration of the personal faculties of the mandator, renunciation of the future protection mandate by the mandatary, etc.). It also seems useful to clearly indicate who is responsible for the processing carried out through the civil registry. Is it the Public Prosecutor's Office with which the civil registry is held? Or is it the civil registry that would, if applicable, be considered a distinct entity and thus responsible for the processing?

VI.

Publicity of personal data registered in the civil registry

21. Regarding the publicity of the information registered in the civil registry, the draft law makes a

distinction depending on whether the future protection mandate has taken effect or not. According to the last paragraph of Article 8 of the draft law, “When the future protection mandate registered in the civil registry has not taken effect within the meaning of Article 9 of this law, certificates of the registration of this future protection mandate may be issued to the signatories of the future protection mandate, to the notary, and to the guardianship judge.”

This provision raises several questions from the CNPD: what is meant by “certificate of registration”? Who is responsible for issuing this certificate? What information will it contain? It also notes that the list of recipients includes, in addition to the signatories of the mandate, the notary and the guardianship judge. However, what is the purpose of this data transmission? Why is it necessary for the notary and the guardianship judge to be able to receive such a certificate before the mandate has taken effect? Is it only the notary who received the future protection mandate established by authentic deed, or any notary who will be called upon to establish a deed for the mandator?

10 See points 10 and following of this opinion.

11 Royal Decree of August 31, 2014, establishing the modalities for the creation, maintenance, and consultation of the central register of mandate contracts in order to organize extra-judicial protection and the central register of declarations relating to the designation of an administrator or a trusted person; see also opinions No. 45/2014 of May 21, 2014, and No. UO/2019 of August 7, 2019, of the Belgian Data Protection Authority.

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22. In the event that the future protection mandate has come into effect, both Article 9 of the draft law and Title XVI of the NCPC relating to the civil registry seem to apply. Article 9, paragraph 5, of the draft law states that “when the future protection mandate has come into effect, certificates of the coming into effect of these mandates may be issued to any person demonstrating a legitimate interest.” Again, the said “certificate of coming into effect” is not defined. It is also not specified who issues this certificate and what information it contains. The CNPD assumes that, at the very least, the mentions of the identity of the mandator and the mandatary will be included. However, it is necessary to question the mentions relating to the object and scope of the mandate. Furthermore, the notion of legitimate interest is not defined. The National Commission wonders whether a person wishing to obtain a certificate of coming into effect of a future protection mandate will have to justify the need to access this document, for example as a party to a contract. There is also the question of who will assess the legitimacy of the invoked interest.

23. Article 1129 of the NCPC, for its part, provides that “copies of the extracts kept in the civil registry may be issued to any applicant. When a note of cancellation has been entered in the file, copies of the extracts recorded in the civil registry may only be issued with the authorization of the public prosecutor.” Article 27 of the draft law adds a second paragraph to Article 1129 of the NCPC stating that “the formalities provided for in the previous paragraph also apply to future protection mandates registered in the civil registry and having come into effect.” Should it be inferred that Article 1129 of the NCPC provides an additional publicity mechanism in addition to that established by Article 9, paragraph 5, of the draft law? If so, what information is contained in the copies of the extracts that may be issued to any applicant? Does the notion of “any applicant” imply that the recipient does not have to justify a legitimate interest, contrary to what is provided in Article 9, paragraph 5, of the draft law? The National Commission observes in this articulation of the texts a source of legal uncertainty for the signatories of a mandate as well as for the actors responsible for the application of the aforementioned texts.

24. It should be recalled that the registration of future protection mandates in the civil registry as well as the issuance of documents containing the information in the civil registry constitutes an interference with the right to privacy and the protection of personal data. Under the principle of proportionality enshrined notably by Article 37 of the Constitution, such interference must be limited to what is strictly

necessary. Thus, the CNPD urges the authors of the text to clearly define the purposes of the processing carried out through the civil registry and to limit the communication of personal data to recipients who actually need it.

12 Joint opinion of the Court of Appeal, the Public Prosecutor's Office, the Public Prosecutor's Office of the District Court of Diekirch, the Public Prosecutor's Office of the District Court of Luxembourg, the District Court of Diekirch, and the District Court of Luxembourg dated May 12, 2023, doc. pari. no. 8133/01, p. 19.

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25. In conclusion, the National Commission emphasizes the importance of clarifying the framework for the processing of personal data that may occur based on this draft law, particularly concerning the information intended to appear on the various certificates, as well as on the copies of the extracts, the recipients of these documents, the retention periods of the various processed data, and the guarantees related to the processing of so-called “sensitive” data. This legal framework must respect the principles set forth by the GDPR, such as the principles of purpose limitation, data minimization, and storage limitation.

Thus adopted in Belvaux on October 20, 2023.

The National Commission for Data Protection

Tine A. Larsen
President

Thierry Lallemand
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